

Framing the Picture:

Setting the Prohibition on Tattooing into the Modern Period¹

Introduction:

Judaism frames the classic rabbinic prohibition with its modern implications by applying the traditional language to contemporary circumstances. Although approaches to the traditional material vary, the contemporary applicability of the prohibition is upheld by all three major movements of American Judaism: Orthodox, Conservative, and Reform. Therefore, more important than understanding the conclusion of each movement, this chapter will analyze the processes of the modern rabbinic authorities as they address the challenges modern tattooing poses to the traditional prohibition.

According to the classic rabbinic authorities, who refined the Biblical prohibition into a finely articulated set of rules, the traditional prohibition forbade the intentional act of incising and writing for the sole purpose of idolatry. If any uncertainty was associated with either intent or purpose, culpability could not be determined. In a case where one's intent was ambiguous (i.e. it could not be definitively proven an indelible mark was made deliberately), the act as well as the resulting mark was outright permitted (as was the case with ashes upon a wound). However, if there was a case where the act of tattooing could be proven deliberate, but the purpose could not be definitively ascertained as idolatrous, then one was exempt from punishment (as was the case with tattooing a slave).

There are no responsa from the pre-modern rabbinic period on this topic that would substantiate whether the cases presented in the traditional discourse were authentic or hypothetical. One could argue the responsa don't exist, because although inquires were

1. I am appreciative of the rabbis of all movements who have come before me, to whom I am indebted to for their work on the issue of tattooing. I draw upon their responsa for the work of this chapter.

made neither the original question nor the answer survive.² It may also be likely the stipulations on the prohibition, as laid out by the classic rabbinic authorities, were clearly understood. With no conflict, there was no need for further inquiries.³ Alternatively, it may also be the case that there are no responsa, because tattooing in the classic and pre-modern rabbinic periods was indeed only a hypothetical scenario.⁴

The same, however, cannot be said of today's Jewish community. Jews in the modern era, from all walks of life, are not only contemplating being tattooed, they are tattooed and even excel as tattoo artists.⁵ As it was presented in the introduction to the thesis, the image of the tattoo has shifted. No longer are tattoos earmarks of idolatry or of an idolater, as was understood by the classic rabbinic authorities.⁶ Rather, the tattoo with which the modern Jew engages is most often perceived as a decal on the vehicle of the

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2. Responsa (singular form – responsum) is a rabbinic term denoting exchanges of correspondence between a halachic authority and a Jewish community or communities. There is some allusion to this form of halachic discourse in the Talmud: BT, Yevamot 105a and BT Sanhedrin 29a. It was not until the Geonic Period, however, in which this brand of halachic writing took on its most important role. "In the middle of the Geonic period it played a decisive part in the process of disseminating the Oral Law and establishing the Babylonian Talmud as the sole authority in the life of the Jewish people, who were becoming ever more widely dispersed as a result of the Islamic conquests." [Shlomo Tal. "Responsa." *Encyclopedia Judaica*. Vol. 14. (Jerusalem: Keter Publishing House Jerusalem Ltd., 1972) p.83-95] Responsa on tattooing from the pre-modern rabbinic period may not have survived for a number of reasons: climate conditions, historical conflicts, or even as matter of priority as one topic may have seem more vital to preserve than another.
 3. This theory does not make an assumption of the community's understanding of the prohibition of *ketovet ka'aka* one way or the other, whether they understood that all tattoos were forbidden or accepted. It simply asserts that an absence of responsa on this issue could be indicative that the Jewish community, by any way they interpreted the prohibition, raised no issued regarding its clauses.
 4. This assumption requires additional research that will not be presented in this thesis. However, it has been shown that Jews were tattooing their slaves in the fifth century B.C.E. (see chapter 2). It is possible that a cessation in the practice did occur in the Jewish community at some period thereafter. But, is it reasonable to presume that all Jews, in all lands, stopped the practice simply because an insular group of rabbinic sages (which gradual grew more authoritative) said it should not be done in some cases?
 5. Ami James is an Israeli born Jew and co-owner of South Beach's famous ink parlor, Miami Ink. James also stars in The Learning Channel's (TLC) hit reality T.V. show by the same name. In fall of 2007 it was recognized as one of TLC's hit shows, with two successful spin off series LA Ink and London Ink. [Marcie Somers. *Heeb Magazine: The Chosen Issue*. No. 14 (New York: Heeb Media, Fall 2007) p.18] This phenomenon is not limited to America. Throughout Israel, tattoo parlors have sprung up including in the heart of the Jewish world, Jerusalem. For example, on Hillel Street in Jerusalem, one can find a thriving tattoo parlor called Bizzart Tattoo & Body Piercing Studio.
 6. "At the root of the precept lies the purpose...to remove all matters of idolatry from our bodies." *Sefer haChinuch*, Mitzvah 253

human body, placed there for purposes of self-expression and adornment.⁷ Detached from its traditional context, this modern tattoo presents a challenge to the basic rabbinic understanding of tattooing as defined by the classic rabbinic authorities and the eternal seal set on its prohibition: “it is in effect everywhere, at all times.”⁸

Attempting to validate the eternal seal set on the prohibition, modern rabbinic authorities or committees of rabbinic authorities known as *poskim*, mitigate the dilemmas spawned by modernity from the standpoint of *halachah*.⁹ Rather than assembling new codes of Jewish law, these modern rabbinic authorities present interpretations of the classic rabbinic definition on tattooing through the literary vehicle of responsa, also known as שאלות ותשובות (questions and responses). More important than the interpretations of these traditional sources are the implications the interpretations have on contemporary circumstances involving Jews and tattoos.

This chapter will present responsa on the topic of tattooing from the three major contemporary Jewish movements in America: Orthodox, Conservative, and Reform.¹⁰ It could be argued that there is no need to delineate the presentation of responsa by movement, because a rabbi is a rabbi is a rabbi. While that is certainly a fair assessment, each movement does not teach or guide its rabbis to approach the Biblical and classic

7. The Pew Research center’s results support the claim of tattoos growing *modus operandi* as a mark of personal adornment. According to the report, “Generation Nexters are not afraid to express themselves through their appearance. About half of them (54%) have either gotten a tattoo, dyed their hair an untraditional color, or had a body piercing in a place other than their ear lobe. Among those three, tattoos are the most popular form of [self] expression.” As all Americans, in can be surmised that the dominant mode of the tattoo on Jews is likewise a statement of self-expression. [Kohut, Andrew (director). “How Young People View Their Lives, Futures, and Politics: A Portrait of Generation Next.” (Washington D.C.: The Pew Research Center, 9 January 2007).] Also, many of the respondents in the following chapter mark themselves with a tattoo of a Jewish symbol as a way to connote Jewish pride.

8. Sefer haChinuch, Mitzvah 253

9. *Posek* (*poskim* in the plural), is a legal scholar of rabbinic texts who attempts to help Jewish individuals and/or communities to respond to contemporary situations that may or may not have halachic significance.

10. Since this chapter bases the examination of how the movements of American Judaism treat the classic rabbinic prohibition on responsa, the Reconstructionist Movement is not mentioned as it produces no responsa.

rabbinic texts in the same way. This does not mean that all rabbis within one movement will necessarily agree. In fact, many times they do not. Yet, it is presumed that *poskim* within one movement will roughly share the same assumptions and presumptions regarding the Biblical and rabbinic texts than will rabbis from different movements. For this reason it is not only convenient but pragmatic for the presentation of the modern responsa in this chapter to be presented according to movement.

While the approach to the traditional material distinguishes the various movements of American Judaism from one another, their conclusions do not. All movements eventually arrive at the same point: the classic rabbinic prohibition applies to modern tattooing. Therefore, in order to continue to reveal the picture of Jewish engagement with tattooing, this chapter will focus on process, analyzing *how* the three movements of modern Judaism in America deal with the specific challenges modern tattooing poses to the classic rabbinic prohibition.

- (1) Do the *poskim* acknowledge a difference between the tattoo of the Bible and classic rabbinic period with the tattoo of today's western society?
- (2) If so, to what extent do the *poskim* utilize the rules of law as developed by the classic rabbinic authorities and to what extent do they use the principles of law found in the wider halachic discourse to ensure that the prohibition applies to modern tattooing.¹¹

Through an analysis of the traditional language as it is found in the responsa from the various movements, this chapter offers a revealing look into the Orthodox, Conservative,

11. "Such is the way of Torah. After it lists certain prohibitions, it includes them all in a general precept." [RaMBaN's Commentary on Leviticus 19:2, "You shall be holy."] The purpose of this legal and literary device was to allow a general warning to cover a great many minute matters. In the words of RaMBaN (a.k.a. Nachmanides / RaMBaN, ca. 1194-1270), "Although there are rules of rabbinic origin, Scripture's main intention [of providing principles] was to [generally] warn us of such matters." [RaMBaN's Commentary on Leviticus 19:2, "You shall be holy."]

and Reform Jewish engagement with tattooing, as they set the prohibition into the frame of the modern period.

Orthodox Movement:

Even in the self-segregating and encapsulated world of orthodoxy, there is some acknowledgement that outside cultural contexts have changed. Burial of a tattooed individual, the ritual of laying *tefillin* (phylacteries) by a tattooed individual, and permanent as well as semi-permanent cosmetics are all addressed in the responsa of the Orthodox Movement.¹² Speaking to the practice of tattooed makeup, Orthodox *posek* Rabbi Chaim Jachter writes, “These procedures are very tempting for observant women (especially those who are blessed with the task of caring for young children) as it saves time and avoids the problem of applying makeup on Shabbat.”¹³ Yet, Rabbi Jachter notes, “even if one were to argue that cosmetic surgery is permitted for reasons of convenience, applying permanent makeup might be prohibited because of the prohibition of *ketovet ka’aka*.”¹⁴

For some Orthodox *poskim*, the prohibition of *ketovet ka’aka* in the Torah is enough to ensure that individuals will not engage in tattooing. Addressing Orthodox youth, Rabbi Jack Abramowitz writes, “The fact that the Torah forbids tattooing should be enough of a

12. Among all the modern Jewish movements presented in this chapter, the Orthodox movement had written to date the most responsa on the topic of tattooing. The following section takes only snippets of the responsa and organizes them according to process and issue rather than conclusions.

13. Chaim Jachter. “Permanent and Semi-permanent Makeup – Cosmetic Tattooing – Part 1.” *Halacha File*, Vol. 14, No. 19. (www.koltorah.org; 22-29 January 2005)

14. *Ibid*. In case it is not clear, Rabbi Jachter is arguing hypothetically. It is as if he is saying that a certain concern, like convenience, may give one reason to permit semi-permanent tattooing. Although his stance on the issue is currently ambiguous, as these are the first remarks of his *t’shuvah* (reply), by the end of the responsum his position is more definitive. Potentially, tattoos for the sake of *kevod habriyot* (which will be discussed later) will be permitted. However, in most cases, Rabbi Jachter will conclude tattooing is “inconsistent with technical Halachah as well as fundamental Torah values,” (part 3).

reason not to do it.”¹⁵ Orthodox adults are receiving the same message. Responding to a question on burial, an Aish rabbi writes, “Whether or not someone with a tattoo can be buried in a Jewish graveyard is not even a question in your case. Since Jewish law prohibits tattooing in the first place, surely your husband will not get one.”¹⁶ Although the Orthodox world is confronted with questions regarding the modern application of tattoos, these responses deny any cultural change has occurred from the Bible until today.

For other Orthodox *poskim*, it is not enough to say what was good for the ancient Israelite is good for the modern Jew. Rabbi Jachter writes, “Similar to countless other contemporary halachic issues, this modern innovation compels *poskim* to rigorously define the parameters of *ketoret ka’aka*, even more so than was done in previous generations.”¹⁷ In other words, Rabbi Jachter advocates a process by which the Orthodox Movement addresses contemporary issues through a continued development of the traditional discourse on the prohibition. In most instances, this can and will be accomplished through direct engagement in the rules of law developed in the classic rabbinic definition of *ketoret ka’aka*. At other times, however, the Orthodox *posek* will rely upon rabbinic principles, not germane to the particular topic of tattooing but still relevant to the greater halachic discourse. Through these two methods, Orthodox *poskim* ensure that the classic prohibition on tattooing still applies to the nuances generated by modernity.

15. Jack Abramowitz. “Tattoos.” *Protecting Your Life: Eating Disorders, Drugs, Cutting, Suicide, and Other Body Issues*. (New York: NCSY Press).

16. “Body Paint.” Aish Responsum: 27 January 2000. www.aish.com/rabbi

17. Jachter, “Permanent – Part 1.”

The first method of the Orthodox *posek* is to engage directly in the classic rabbinic discussion of *ketovet ka'aka* in order to encompass modern innovations of tattooing within the prohibition. This is not done through any dramatic act of intellectual force. Rather, by identifying subtle discrepancies between the positions of the classic rabbinic authorities or the unusual silence in their writings, Orthodox *poskim* of the modern period find ample room to extend the rules of law to address a wide range of contemporary issues related to indelibility, application, and intent.

Indelibility (i.e. how long the tattoo mark will last) is considered among modern *poskim* a serious issue for the Orthodox world. In a way the indelibility of the mark represents for the Orthodox Jew a constant obstacle on the path of a religious life, for in its very presence it is a physical reminder of the previous path of transgression.¹⁸ In one response, a *ba'al t'shuvah* from California asks:¹⁹

“Is it permissible for me to put *tefillin* on my left bicep over a tattoo of the devil riding a motorcycle? Perhaps it would be better to put the *tefillin* on my right arm instead?”²⁰

To which the Orthodox *posek*, Rabbi David Samson, answers, “A similar question was asked of the Minchat Yitzchak, ‘Could a person place *tefillin* over a tattoo of a naked woman on his left bicep?’”²¹ Utilizing the precedent, Rabbi Samson advises the

18. This concern was similarly raised by the author of *Sefer haChinuch* back in the 13th century when he wrote, “The admonition was given explicitly about this matter that people do to their physical selves as it is a constant reminder of the transgression.” [Mitzvah 251].

19. A *ba'al t'shuvah* is a traditional term designed for an individual who had maintained a life without adhering to the traditional understanding of the *halachah* and then began to do so.

20. Samson, “Tattoos.”

21. Samson, “Tattoos.” Minchat Yitzchak is also known as Rabbi Yitzchak Yaakov Weiss. The particular *t'shuvah* being referenced is *Minchat Yitzchak*, vol. 3, no. 11. According to Dr. Washofsky's reading of Rabbi Weiss' *t'shuvah*, “he's more concerned with the fact that the image is of a naked women...[and] the requirement that the תפילין של יד be placed on one's ‘weaker’ arm,”

individual to “cover up as much of the tattoo as he can with his shirtsleeve and not look in its direction when he recites the blessing over the *tefillin*.”²² Although indelible, by covering it up or looking the other way it is hoped that at least symbolically one may overcome this obstacle and remain on the path of holiness.²³

To more thoroughly address the contemporary challenge indelibility poses to one’s religious path, Orthodox *poskim* must manipulate the positions of the classic rabbinic authorities found in the traditional texts to answer the question: How long must a tattoo last in order to be culpable? Answering this question is not as simple as it appears, for the classic rabbinic texts do not present a unified picture on indelibility. For example, RaSHI wrote that “a tattoo cannot ever (לעולם) be erased.”²⁴ However, another classic rabbinic authority, the *Nimuke Yosef*, defined the tattoo not as permanent but simply a mark that must last “a long time.”²⁵ From the incongruity, modern *poskim* of the Orthodox Movement gently extend the classic rabbinic definition of *ketovet ka’aka* to address the concern of indelibility. Rabbi Natan Gestetner suggests, “When RaSHI writes לעולם, RaSHI does not mean ‘forever’ literally...RaSHI means ‘for a long period of time.’”²⁶ As such, Rabbi Gestetner arbitrarily rules, “three years is considered ‘a long time’ and thus

rather than - Dr. Washofsky goes on to say - “relat[ing] to the prohibition in his analysis of the question.” Nevertheless, that does not seem to prevent Rabbi Samson from procuring Weiss’ answer to fit a similar case, this time as it does relate to the prohibition on tattooing. [Dr. Washofsky’s notes on this topic are contained in a personal e-mail correspondence to the author of this thesis, received 1 January 2009.]

22. Samson, “Tattoos.”

23. Unlike the religious tone of the argument presented above, Rabbi Jack Abramowitz attempts to make the issue of permanence applicable to youth from a purely practical standpoint. He teaches, “Styles change. Just look at your parents’ pictures from high school or college. Would you want their old clothing or hair styles permanently bonded to you? Similarly, why indelibly etch a picture on yourself? It might not seem like such a good idea a year or five years from now.” [Abramowitz, “Tattoos.”]

24. RaSHI’s Commentary on BT Gittin 20b, s.v. כתובת קעקע

25. *Nimukei Yosef* commentary on BT Makkot 21a, s.v. עד שיכתוב ויקעקע

26. Rabbi Natan Gestetner is a modern *posek* from B’nai B’rak in Israel. The information cited by Rabbi Jachter comes from Gestetner’s *Teshuvot Lihorot Natan*, 10:64. [Jachter, “Permanent – Part 1.”]

even semi-permanent...tattooing that last for three years might be Biblically prohibited.”²⁷ Rabbi Shraga Shneebalg,²⁸ however, disagrees with Rabbi Gestetner’s harmonization. Relying upon RaSHI’s literal understanding of לעולם as “forever,” he interprets the Biblical prohibition against only permanent tattooed marks, thus “considering semi-permanent tattooing [merely] a rabbinic prohibition.”²⁹ Designating indelibility as a rabbinic stipulation, rather than Biblical, provides some legal flexibility for Orthodox *poskim* when assessing culpability in modernity.

Orthodox *poskim* are forced to address another facet of culpability from the classic rabbinic texts with the advancement of scientific knowledge in the areas of technology and biology; this time as culpability relates to this issue of application. Unlike the classic rabbinic discourse, which understood the implementation of *ketovet ka’aka* as two distinct acts – incising and writing – the technological innovation of the tattoo machine allows tattoo artists to incise and insert ink in one simultaneous act. Rabbi Gestetner “understands that this is what occurs with cosmetic tattooing.”³⁰ How then, according to the Orthodox *posek*, can the traditional discourse speak to the contemporary practice? According to RaSHI, “Tattooing begins with writing on the flesh...and afterwards he

27. *Ibid.*

28. Rabbi Shraga Shneebalg is a modern *posek* from the Orthodox movement in London. The work cited here and elsewhere in this section come from his, *Teshuvot Shraga HaMeir* 8:44-45.

29. The grounds to make such a claim are pontificated from the classic rabbinic debate over the ashes placed upon a wound. According to Rabbi Shneebalg, the resulting mark would “undoubtedly be classified as temporary... The fact that the *Gemara* [a rabbinic text] even raises the possibility of regarding such a mark as *ketovet ka’aka* proves that one violates at least a rabbinic prohibition even if the mark does not last forever.”[*Ibid.*] Rabbi David Samson, another Orthodox *posek*, concurs, writing: “The Torah allows for medication to be put on a wound even though it dyes the skin for a period of time... While it is not specified why the wound makes the dyeing of the skin okay, the temporary nature of the process is the major consideration of the rabbis deciding the law.” [David Samson. “Tattoos are not for Jews.” Elul 5762. www.yeshiva.org.il]

30. Chaim Jachter. “Permanent and Semi-permanent Makeup – Cosmetic Tattooing – Part 2.” *Halacha File*, Vol. 14, No. 20. (www.koltorah.org; 5 February 2005).

incises the flesh with a needle or knife.”³¹ RaMBaM, describing the opposite order, writes: “Tattooing, as mentioned in the Torah, consist in cutting the flesh, then filling the cut with blue pigment, ink, or with whatever color leaves a mark.”³² Because both interpretations of the order of application are articulated without refutation, Rabbi Gestetner rules one could “violate the Biblical prohibition even if the writing and cutting occur simultaneously.”³³

Scientific advancements generated another challenge to the application stipulation within the classic rabbinic definition of *ketovet ka’aka* for the Orthodox *posek*, this time in the area of biology rather than technology. “Anatomically speaking,” writes Rabbi Samson, “there are five different upper cellular layers of the skin in the body. The top four change every twenty to twenty-five days.”³⁴ Thus, the depth of the incision at the time of application affects the indelibility of the tattoo. Could one, therefore, halachically make a tattoo if only a temporary mark, lasting no more than a month, would be made? To prevent this interpretation, a statement from the *Shulchan Aruch* is brought to bear on the issue of application: “*Ketovet ka’aka* [means] that one שורט his flesh.”³⁵ According to Rabbi Jachter, “שורט” can be translated as “scratching the flesh.”³⁶ Thus, rules Rabbi Jachter, “One violates the prohibition even if the dye is inserted only immediately below

31. Known as a literalist, RaSHI could base his interpretation on the order of the word ‘*ketovet ka’aka*,’ since writing (*ketovet*) is preceded by incising (*ka’aka*). [RaSHI’s commentary on BT Makkot 21a, s.v. כתובת קעקע] Also, this seems to be the order implicit in the *Mishnah*, which stated, “one is not culpable until one writes [then] incises.” [*Mishnah*, Makkot 3:6]

32. RaMBaM, *Mishneh Torah*, *Hilchot Avodat Kochavim* 12:11. RaMBaM interpretation is supported in the *Nimukei Yosef* – “one tears the skin and then places ink in the same laceration, and it is marked there for a long time” – and in the *Shulchan Aruch* – “one lacerates his flesh and fills the place of the laceration with blue dye, [black] ink, or with whatever color which leaves a mark.” [YD 180:1]

33. Jachter, “Permanent – Part 2.”

34. Samson. “Tattoos.”

35. YD 180:1

36. It is difficult to justify Rabbi Jachter’s interpretation for שורט. Most often it is translated as “lacerating,” making it unclear whether it is lacerating 1 or 10 layers.

the skin level.”³⁷ The implication of this interpretation would clearly rule out even the most temporary of tattoos.

When made intentionally, there is no issue raised regarding the indisputable culpability of the tattoo artist in either the two acts of application, no matter in what order they were executed, or the depth of the incision. The remaining issue for the modern Orthodox *posek* is how to determine the intent, and thereby the culpability, of the one who was tattooed. Remember, according to the classic rabbinic discourse, culpability cannot be determined unless intent is conclusively ascertained. The uncertain culpable status of the tattooed individual is expressed in a question from a Holocaust survivor. He asks:

“I have a tattoo on my left arm from the German Auschwitz camp, and I will be buried with this... I think?”³⁸

Even the unimaginable horror of the Holocaust and the unprecedented level of hurt it perpetrated on the Jewish community can, according to the Orthodox Movement, be addressed and mitigated through the traditional discourse. According to RaMBaM, “[Culpability applies] to the tattooer, but the person whose flesh is tattooed upon is not culpable unless he assisted by some act.”³⁹ Yet, nowhere in the classic rabbinic discourse is there a discussion about what the assisting act must be.

From silence, the modern Orthodox *posek* must formulate a definition of the assisting act of tattooing in order to establish intent and address the modern implications posed by the Holocaust. According to Rabbi Shneebalg for an act to constitute as an assisting act of tattooing, the tattooed individual must intentionally assist, literally, in either of the two

37. Jachter, “Permanent – Part 1.”

38. “Holocaust Tattoos.” Aish Responsum; 27 January 2000. www.aish.com/rabbi

39. RaMBaM, *Mishneh Torah*, *Hilchot Avodat Kochavim* 12:11

acts of tattooing: incising and/or writing of the indelible mark. As Rabbi Shneebalg writes, “one who has a cosmetic tattoo inscribed on his face does not assist in that process.”⁴⁰ By Rabbi Shneebalg’s interpretation, submission or consent is not enough to constitute an intentional act of assistance and thus the tattooed individual is not culpable. Rabbi Jachter, on the other hand, disagrees. He writes, “one who submits himself to cosmetic tattooing might violate [the prohibition, even if it is] only a rabbinic prohibition.”⁴¹ Hence, Rabbi Jachter distinguishes between the Biblical prohibition of tattooing (only the act of writing/*ketovet* and incising/*ka’aka*) and what he believes to be a rabbinic prohibition (intentionally assisting in tattooing by any means, even if it is not the by writing and/or incising). The tattoos of Holocaust survivors, by either position, are not Biblical or rabbinic transgressions as these Jews neither consented to nor assisted in the writing or incising of the coercive act of Nazi persecution.

In fact, these Holocaust tattoos – even amongst the Orthodox – are recognized as positive Jewish symbols. As an Aish rabbi, responding to the survivor’s question, writes: “your tattoo is a symbol of bravery and courage to remain Jewish, despite the evils you have had to endure.”⁴² This position may echo the rabbinic principle already annunciated in the discussion during the classic rabbinic period. According to the Tosafists, “items forbidden to derive benefit are still valid.”⁴³ However, as this is the only time an Orthodox *posek* treats tattoos in such a triumphant tone, this position may apply only to cases when tattooing was made under coercion or duress. Similar tattoos, done through

40. Shneebalg, *Teshuvot Shraga HaMeir*, 8:44-45, cited in Chaim Jachter. “Permanent and Semi-permanent Makeup – Cosmetic Tattooing – Part 3.” Halacha File, Vol. 14, No. 21. (www.koltorah.org: 5 February 2005)

41. Chaim Jachter. “Permanent and Semi-permanent Makeup – Cosmetic Tattooing – Part 3.” Halacha File, Vol. 14, No. 21. (www.koltorah.org: 5 February 2005).

42. *Ibid.*

43. Tosafists Commentary to BT Gittin 20b, s.v. בכתובת קנקע.

personal choice for reasons of adornment or self-expression, even if motivated by a sense of Jewish pride would likely not be addressed in a similar tone.

Whether it is with the issue of intent or the other factors that determine culpability, at some point the question is raised: “Is it true that if I have a tattoo I cannot be buried in an orthodox cemetery?”⁴⁴ The assumption inherent in this and all similar questions is that culpability (i.e. the violation of the prohibition) goes hand in hand with a punishment. After all, Maimonides was the first, and as far as we know, the only classic rabbinic authority to validate this assumption, writing: “The punishment for contravention of this prohibition is whipping.”⁴⁵ As whipping is no longer a punishment, Chabad posek Chani Benjaminson assures that neither is a ban on burial.⁴⁶ As he reassures his readers, “One who has a tattoo can still be buried in a Jewish cemetery.”⁴⁷

That does not mean the gates of the cemetery are open for all tattooed individuals whether marked coercively or deliberately. As Benjaminson cautions, “every Jewish burial society has the right to enact its own criteria for who may and may not be buried in their plot...[and] certain burial societies – not the majority of them or even close – will

44. Chani Benjaminson. “Can a person with a tattoo be buried in a Jewish Cemetery?” (www.chabad.org). Chani Benjaminson is the co-director of Chabad of the South Coast and a member of the editorial staff of Chabad.org. His responsa on tattooing addressed the question: “Is it true that if I have a tattoo I cannot be buried in an orthodox cemetery? I’m not referring to Holocaust markings.”

45. *Sefer HaMitzvot*, Mitzvah 41

46. Whipping or sometimes referred to in rabbinic literature as strips or flogging were implemented in the Jewish community prior to the fall of the Temple in 70 C.E. In fact, stripes are the only corporal punishment named in the Torah and the number imposed could not exceed 40 (Deut. 35:2-4). It is unclear how long they continued to be administered after the destruction of the Temple, as only a court of three ordained judges may impose the penalty of stripes. Without the centralized cult of the Temple, these judges ceased to be. And, although the courts of the Jewish colonies of Babylonia and elsewhere in the Diaspora exercised much authority, they could not sentence a man to strips according to the Torah. [“Stripes.” www.jewishencyclopedia.com]

47. Chani Benjaminson. “Can a person with a tattoo be buried in a Jewish Cemetery?” (www.chabad.org).

not bury among their own a person who willingly tattooed him/herself.”⁴⁸ This practice of selectively permitting or not permitting individuals for burial has contributed to the common misconception that there is a ban on burial for tattooed individuals within Jewish law. Additionally, the misconception has gained credibility among individuals of all Jewish movements because of its relative degree of effectiveness. Whether cognizant of the fabrication or not, whether motivated religiously or not, religious leaders and parents alike have continued to perpetuate this misconception because of its efficacy in preventing tattooing among the next generation.⁴⁹

Beyond engaging directly with the classic rabbinic definition of *ketovet ka'aka*, the second method of the Orthodox *posek* to help guide the next generation in the matter of tattooing introduces rabbinic principles to the conversation. Many of these principles were not connected to the original discussion of *ketovet ka'aka* in the classic rabbinic period. Ultimately, though, they retain value in ensuring that despite the nuances modern tattoos pose to the classic rabbinic definition of *ketovet ka'aka*, the prohibition against tattooing still applies in our contemporary contexts.

Surprisingly, some rabbinic principles may actually nullify the prohibition. According to Rabbi Jachter, “there are exceptional circumstances where *halachah* tolerates the

48. *Ibid.*

49. Another reason is articulated in one of the two Reform responsa. According to Rabbi Solomon Freehof, “What concerns me, however, is the source for this strange idea. I imagine that it has a following source: The verse in Scripture, Leviticus 19:28, speaks to two separate prohibitions, one, the heathen practice of cutting slits in one’s skin (self mutilation) as a mark of mourning for the dead, and in the same verse there is the prohibition for tattooing... Thus there became associated in some people’s mind tattooing and the dead. This association of ideas may have led to the notion that one who commits this one sin of tattooing may not be buried in the Jewish cemetery.” [Solomon B. Freehof. *Today’s Reform Responsa*. (HUC Press: Cincinnati, 1990) p. 121] While Rabbi Freehof has sound reasoning, I do not believe the average individual who perpetuates the misconception has the Biblical verse of Leviticus in mind. It could be the case, however, that the original association was created by a significant (while misguided) religious authority. Thus, through dissemination to his followers and their followers and so forth the incorrect association was maintained without understanding of its Scriptural origin.

violation of rabbinic prohibitions.”⁵⁰ One such exception is for the sake of *kevod habriyot*, “preserving human dignity.”⁵¹ This exception has been noted by Rabbi Ezra Basri, who used the principle of *kevod habriyot* to allow surgeons to tattoo eyebrows on the forehead of a woman who had no eyebrows.⁵² *Kevod habriyot* is also utilized by Rabbi Shneebalg to permit the injection of pigment that matches the skin tone of the individual underneath a scar for the procedure of scar removal.⁵³ “Improved self-image,” according to Dr. Daniel Eisenberg, an Orthodox medical doctor and scholar, “is a tangible benefit that, in certain circumstances, may outweigh the prohibition.”⁵⁴

Another principle which may counter the prohibition is the *Gemara*’s dictum of “once people engage in a behavior, we are permitted to engage in the behavior.”⁵⁵ This dictum was instituted to prevent Jews from serving as the proverbial guinea pigs for new procedures. For example, in the early twentieth century a responsum of Avnei Neizer prohibited a surgery to correct disfigurement.⁵⁶ Whereas, by the middle of the twentieth

50. Jachter, “Permanent – Part 3.”

51. The principle of *kevod habriyot*, commonly rendered as “human dignity” or “the dignity rendered to God’s creations” stems from the Book of I Samuel 2:30. It is written there, “For I (i.e. God) honor those who honor Me.” According to Pirkei Avot 4:1, one honors God “by honoring others.” Furthermore, in the BT Berachot 19b, a Cohen is permitted to violate the purity of his status and approach a coffin or a graveyard if greeting a king, for “great is the honor due to mankind; it supersedes a prohibition of the Law,” [Kaufmann Kohler, “Honor.” *Encyclopedia Judaica*. (Jerusalem: Keter Publishing House Jerusalem Ltd., 1972). There are many other places in the halachic discussion where the principle of *kevod habriyot* arises: BT Shabbat 81b, 94b; Eruvin 41b, Megillah 3b, and Beitzah 36b just to name a few.

52. *Ibid.* Rabbi Ezra Basri is a prominent Sephardic dayan, who presides over Jerusalem’s *beit dein* in the State of Israel and authored *Teshuvot Shaarei Ezra* and *Dinei Mammonot*. Citation comes from Techumin 10:282-287.

53. Rabbi Shraga Shneebalg, *Teshuvot Shraga HaMeir* 8:44-45.

54. Daniel Eisenberg, M.D. “Do we own our bodies, or are they only on loan?” (www.aish.com, 13 January 2008)

55. BT, Yevamot 72a

56. Chaim Jachter. “Cosmetic Surgery: A Review of Four Classic Teshuvot – Part 1.” *Halacha File*, Vol. 14, No. 17. (www.koltorah.org: 08 January 2005). His responsum on this topic is quoted in Rabbi Jachter’s work as Avnei Neizer, Y.D. 321. Rabbi Avrohom Bornsztain (1838-1910), was known as the Avnei Neizer, the name of his collected responsa. He was a rabbi of the Chasidim and an early 20th century *posek*. Avnei Neizer was asked whether or not it was permissible to allow a child to undergo surgery to straighten a crooked leg. Because of the danger involved, Avnei Neizer ruled that it was not permitted.

century the procedure had been perfected and proven so safe that a responsum of Chelkat Yaakov by Rabbi Yaakov Breisch permitted it.⁵⁷ Therefore, Rabbi Jachter concludes, “Only after a behavior has proven to be safe over a considerable period of time and it becomes commonly accepted behavior, may we engage in such a behavior.”⁵⁸ Modern tattooing may fit this requirement as it has been perfected, proven safe, and widely implemented over the last 40 plus years. Although, Rabbi Jachter emphasizes, “only a Rav of considerable stature is authorized to rule regarding [these] matters.”⁵⁹

As Orthodox rabbis of considerable stature realized the possibility that rabbinic principles may counter the rules of law regarding the prohibition, they nevertheless relied heavily upon the rules of law to reinforce the prohibition against such possibilities. Yet, potentially as a bit of halachic insurance, one overarching rabbinic principle is still used to fill the gaps of interpretation and encompass modern nuances where the rules of law may have left off. This recurring principle, used over and over again throughout various Orthodox responsa, is *b'tzelem elohim*, “created in the image of God.”⁶⁰ Within the

57. Yaakov Breisch. *Teshuvot Chelkat Yaakov*, 3:11. Rabbi Breisch is a contemporary *posek* considered by the Orthodox world among the first tier of late twentieth century *poskim*. Rabbi Breisch lived in Switzerland and died in 1970. The responsum in question asked Rabbi Breisch whether it was permissible or not for a young woman to undergo plastic surgery in order to straighten and reduce the size of her nose if it would facilitate her ability to find a suitable marriage partner. Although the *Shulchan Aruch* forbids one from placing oneself in danger (Y.D. 116), Rabbi Breisch cites BT, *Yevamot* 72a, which permits an individual to engage in activities that involve some danger as long as people commonly engage in the practice. In other words, once a society has deemed that a certain activity has an acceptable level of risk, such as traveling in a car or plane, then the Jew in that society is permitted to engage in that behavior. According to Rabbi Breisch's reply, cosmetic surgery would apply as long as there was “a great need for it,” a great need considered to be physical or psychological.

58. Jachter, “Permanent – Part 3.”

59. *Ibid*

60. Genesis 1: 27 – “God created man in His image, in the image of God (*b'tzelem elohim*) He created him.” Also see commentary of Rabbi David ibn Zimra to *Yad*, Sanhedrin 18:6 – a person's life is not his/her property; it belongs to God.

context of tattooing, the principle is often articulated as “our bodies are on loan from God. It is our obligation to return them in good condition.”⁶¹

Seemingly the concept of *b'tzelem elohim* speaks to both youth and adult alike. Addressing Orthodox youth, Rabbi Abramowitz writes, “You wouldn’t paint a borrowed car or stud a borrowed jacket. Similarly, we don’t have the right to tattoo or cut a body that we are expected to return.”⁶² To adults, Dr. Eisenberg states, “Man is given custodial rights to his body, and has no more right to harm or destroy his body than the superintendent has to ransack the building he is hired to maintain.”⁶³ This general principle, which is absent in the classic rabbinic discussion, has a wide appeal in the Orthodox world because it ensures that the prohibition can continue to guide Jews even in the contemporary contexts in which they now reside.

Conservative Movement:

The Conservative Movement was confronted with the act of tattooing as tattoos moved from the periphery of the American society to enter the walls of its synagogues. Along with body piercing it was asked, “Is...tattooing permitted? Does it (i.e. the act of tattooing) preclude taking part in the synagogue rituals or being buried in a Jewish cemetery?”⁶⁴ Addressing this contemporary confrontation, the Conservative *posek*, Rabbi Alan Lucas leads the Conservative Movement’s Committee on Jewish Law and

61. Abramowitz, “Tattoos.”

62. Abramowitz, “Tattoos.” *B'tzelem elohim* attains the meaning mentioned above because a *posek* is able to redefine a Biblical or rabbinic statement in light of a particular issue. In this case, the issue is tattooing. It is as if to say that the modern-day tattoo is not technically the *ketoret ka'aka* as understood in its Biblical contexts nor its classic rabbinic contexts. Nevertheless, it still violates another aspect of Jewish law, this time the principle of law of *b'tzelem elohim*.

63. Eisenberg, “Do we own our bodies.”

64. Alan B. Lucas. “Tattooing and Body Piercing.” Responsa 1991-2000: The Committee on Jewish Law and Standards of the Conservative Movement. (Rabbinical Assembly: New York, 2002) p. 115

Standards (i.e. the Committee) to reinforce the prohibition through two educational approaches.⁶⁵ Similar to the Orthodox Movement, the Conservative Movement begins with a direct engagement with the classic rabbinic discussion and then includes rabbinic principles not germane to the original prohibition. Yet, unlike the Orthodox *poskim*, who relied heavily upon the rules of law, the Conservative *posek* provides a balanced presentation of these two approaches in one large responsum, ensuring the traditional prohibition continues to speak to all Conservative Jews, regardless of their level of observance. “In our day,” professes the Committee, “the prohibition against all forms of tattooing...should be maintained.”⁶⁶

To support the position that the classic prohibition of *ketovet ka’aka* still applies to modern tattoos, Rabbi Lucas initiates the Conservative Movement’s modern discussion on tattooing through a condensed presentation of the classic rabbinic texts. Starting with the Levitical prohibition of 19:28 and ending with Joseph Caro’s *Shulchan Aruch*, the responsum derives contemporary ramifications from the classic rabbinic positions held regarding the nature of *ketovet ka’aka*. Particularly, the Committee will address the issues of coercive tattoos, medical tattoos, and the indelible nature of tattoos.

65. According to Conservative Judaism, “Since each age requires new interpretations and applications of the received norms, Halakhah is an ongoing process.” Giving voice to these new interpretations of *halachah* for Conservative Judaism is The Committee on Jewish Law and Standards. While “authority for religious practice in each congregation resides in its rabbi...in making decisions, rabbis may consult The Committee on Jewish Law and Standards, consisting of representatives of the Rabbinical Assembly, the Jewish Theological Seminary of America, and the United Synagogue of America. The Committee on Jewish Law and Standards issues rulings shaping the practice of the Conservative community. Parameters set by that Committee...govern all of the rabbis of the Rabbinical Assembly, but within those bounds there are variations of practice recognized as both legitimate and, in many cases, contributory to the richness of Jewish life.” [*Emet Ve-Emunah: Statement of Principles of Conservative Judaism*. (New York: The Jewish Theological Seminary of America, 1988) pp. 21-25]

66. Lucas, “Tattooing and Body Piercing,” p.117

Within the shadow of the Holocaust that still lingers over much of Judaism, the Conservative Movement addressed the challenge the coercive tattoos of that era pose to the classic rabbinic prohibition against tattoos. According to Joseph Caro in the *Shulchan Aruch*, “If he makes such [a mark] on the flesh of his fellow, the same [fellow] that had the mark made upon him is exempt [from culpability] unless he [i.e. the fellow] assisted in [making] the thing.”⁶⁷ Holocaust survivors, accordingly, would be exempt from punishment by the classic rabbinic position. But, the Committee goes one step farther in its interpretation in order to respond to survivors’ concerns that their tattoos place them in a precarious place within the Jewish community. Not only are Holocaust survivors exempt from punishment for being marked, but Rabbi Lucas believes “the *Shulchan Aruch* makes it clear that those who bear these tattoos are blameless.”⁶⁸

A similar conclusion will be reached with the contemporary challenge medical tattoos pose to the classic rabbinic definition of *ketovet ka’aka*. The Conservative Movement recognized that tattoos are now “used in cancer treatments...which permanently mark the body for life saving treatment.”⁶⁹ To mitigate the challenge of this modern medical innovation, the Committee could have relied upon the rabbinic principle of *חי בהם* (*chai bahem*); meaning one is permitted to transgress *halachah* if it is a matter of life and death.⁷⁰ But, surprisingly, the Committee does not turn to this rabbinic principle. Instead, it recalls once again a teaching from the *Shulchan Aruch*. According to Joseph Caro, “It

67. *Shulchan Aruch*, Yoreh De’ah 180:2

68. Lucas, “Tattooing and Body Piercing,” p.117

69. *Ibid.*

70. Leviticus 18:5 states, “You shall keep my laws and My rules. By doing them a person may live by them (חי בהם): I am the Lord.” Rabbinic tradition has understood this mandate as “we shall live by them, [implying] we should not die on their account.” [BT, Yoma 85b and BT, Sanhedrin 74a].

is permitted to place ashes upon a wound to heal it.”⁷¹ Furthermore, Rabbi Lucas notes, “the *Siftei Kohen*,” commenting on this verse from the *Shulchan Aruch*, “states that since the purpose is for medical purposes, it is permitted.”⁷² Using the classic rabbinic definition rather than employing the rabbinic principle allows for a wider implementation of medical tattoos. Not only is tattooing permitted to save a life, but a tattoo for “any medical procedure...is not included in the prohibition against tattooing.”⁷³

How about “hand stamps and other popular children’s decorations which mimic tattoos and paint the skin in a nonpermanent manner... [are they] included under the prohibition of tattooing?”⁷⁴ As was expressed in the section of Orthodox responsa, indelibility was not a major concern for the classic rabbinic authorities, as multiple positions were articulated without a definitive ruling: RaSHI wrote that a *ketovet ka’aka* was a “permanent mark,” while the *Nimukei Yosef* wrote that a *ketovet ka’aka* must simply “last a long time.”⁷⁵ The Committee highlights this ambiguity, writing: “It is [both] the lasting and permanent nature of tattooing which makes it a culpable act.”⁷⁶ This indeterminate statement may have the wide appeal necessary for a movement that encompasses various degrees of religious observance in its fold, but to adequately guide the Movement a more decisive stance was needed. As such, Rabbi Lucas states later on in the responsum, “The prohibition against tattoos applies only to permanent marks on the skin.”⁷⁷ This position is based on a slightly skewed interpretation of the prohibition from the *Mishnah*.

71. *Shulchan Aruch*, Yoreh De’ah 180:3

72. Lucas, “Tattooing and Body Piercing,” p.117

73. *Ibid.*

74. *Ibid.*

75. RaSHI’s Commentary on BT Gittin 20b, s.v. כתובת קעקע. *Nimukei Yosef* commentary on BT Makkot 21a, s.v. עד שיכתוב ויקעקע

76. Lucas, “Tattooing and Body Piercing,” p.115

77. *Ibid.*, p. 117

According to the *Mishnah*, “One who writes a *ketovet ka’aka*...is not culpable until he will write and incise with ink, blue dye, or anything that leaves a mark.”⁷⁸ By Rabbi Lucas’ interpretation, the *Mishnah* reads: an individual is culpable “only if he writes and pricks it in...to leave a lasting mark.”⁷⁹ Adding “only if” and “lasting” changes the very nature of the conditional statement of the *Mishnah*. No longer is the *act* of writing and incising emphasized as the culpable factor. Rather, culpability hinges upon the *mark* itself that is lasting. Therefore, according to Rabbi Lucas’ position, hand stamps and other decorations that merely mimic tattoos, do not violate the prohibition’s stipulation, as they are not indelible. Yet, the issue of indelibility would have far more reaching concerns for the Conservative Movement than childhood decorations.

Indelibility comes into play when individual Jews begin to weigh which mitzvot are more important. Among adherents of all the progressive movements of modern Judaism, personal autonomy has come to dominate the choices made along one’s religious path. No longer is adherence of the mitzvot solely contingent upon God’s request. Rather, Jewish decisions are being based upon a scale of personal predilections, as one weighs the importance of one mitzvah over another. Thus, many consider it less offensive to profane the Sabbath or break the laws of kashrut than to violate the prohibition against tattooing, because violating *ketovet ka’aka* leaves an indelible and visual sign of the transgression. Nonetheless, writes Rabbi Lucas, “the fact that someone may have violated the laws of kashrut at some point in their life, or violated the laws of Shabbat would not merit such sanctions [of limiting synagogue participation or restricting burial]; the

78. *Mishnah*, Makkot 3:6

79. Lucas, “Tattooing and Body Piercing,” p.115

prohibition against tattooing is certainly no worse.”⁸⁰ Rabbi Lucas’ statement cautions one from exaggerating the implications of indelibility. While important, the indelible nature of the tattoo does not make tattooing more important than any other commandment.

Even though it is desired, Jewish law has not been treated uniformly at any time in history. As we recall, the Biblical prohibition stated: “You shall not incise marks [tattoos] on yourself: I am the Lord.”⁸¹ Yet, suggests Rabbi Lucas, even the ancient Israelites did not uniformly maintain God’s commandments as “tattooing may have been permitted in Biblical times.”⁸² Rabbi Lucas draws upon the verses expounded upon at the end of chapter one, emphasizing Isaiah’s statement: “One shall say, ‘I am the LORD’s,’ another shall use the name Jacob, and another shall mark his arm ‘of the LORD’s’ and adopt the name Israel.”⁸³ Acknowledging that even in the Biblical period homogeneity was not maintained regarding one’s approach to and application of God’s law does not temper the Committee on Jewish Law and Standards from categorically prohibiting all corporal marks. For, it is felt that “tattooing...is distasteful when confronted with a contemporary secular society that is constantly challenging the Jewish concept.”⁸⁴ Envisioned by Rabbi Lucas is a war between Jewish religion and secular society on the battlefield of the human body. The indelible mark of the tattoo, appearing more and more on the skins of Conservative Jews, is a sign that the traditional values of Judaism codified in the classic rabbinic definition of *ketovet ka’aka* have lost significant ground.

80. *Ibid.*, p. 117

81. Leviticus 19:28

82. Lucas, “Tattooing and Body Piercing,” p.116

83. Isaiah 44:5

84. Lucas, “Tattooing and Body Piercing,” p.117

Therefore, very much like his Orthodox colleagues, Rabbi Lucas with the rest of the Committee on Jewish Law and Standards must not simply rely upon the pre-modern rabbinic discourse on *ketoret ka'aka*. They must also deploy rabbinic principles in this confrontation between modernity and the prohibition's applicability. Specifically, the Committee turns to the concept of *b'tzelem elohim*. Rabbi Lucas understands this principle to mean, "We are created in *b'tzelem elohim*, 'in the image of God,' and our bodies are to be viewed as a precious gift on loan from God, to be entrusted into our care and not our personal property to do with as we choose."⁸⁵ Consistent with the contemporary concerns of the Conservative Movement, the implications of this interpretation of *b'tzelem elohim* extend beyond reinforcement of the prohibition. It also comes to limit personal autonomy. Our bodies are not our personal property. They are God's. Therefore, "voluntary tattooing, even if not done for idolatrous purposes, expresses a negation of this fundamental Jewish principle."⁸⁶

B'tzelem elohim is not the only Jewish perspective jeopardized by the voluntary act of tattooing. So too is the Jewish value of *tzinut*, "modesty." According to Rabbi Lucas, "With respect to the traditional Jewish value of *tzinut*, one has to wonder if 'private' parts of the body are being [tattooed] for fashion purposes, if the intent is to keep them private."⁸⁷ The assumption inherent in this perspective is that all tattoos, including those made on private areas of the body, will be shared with others. As such, areas not typically exposed will be as the corporal mark is revealed. In each occurrence, one compromises the Jewish value of *tzinut*.

85. *Ibid.*

86. *Ibid.*

87. *Ibid.*, p.119

Both principles, *b'tzelem elohim* and *tzinut*, are not included in the Conservative discussion on tattooing to merely ensure the applicability of the prohibition. Rather, these rabbinic principles are utilized to appeal to one's sense of personal autonomy. It is felt that "Jews sufficiently educated and sensitive to the concepts of *tzinut*, modesty, and *b'tzelem elohim*, being created in God's image, will limit themselves appropriately."⁸⁸ In other words, if the traditional rules of law gave the impression of excising personal autonomy from the Movement, then – through an educational process – the principles of law are intended to bring it back in.⁸⁹

The Conservative Movement was confronted with the act of tattooing as "tattoos became more popular in contemporary society."⁹⁰ Addressing this contemporary confrontation, the Conservative *posek*, Rabbi Alan Lucas led the Committee on Jewish Law and Standards to walk a very thin line, balancing the communal forces with personal autonomy. To prevent adherents of the Conservative Movement from falling exclusively to one side or the other, Rabbi Lucas presented a balanced presentation between the rules of law of the classic rabbinic definition of *ketoret ka'aka* and principles of law contained within the wider halachic discourse. In both cases, the traditional values of Judaism are presented in terms of education, empowering the individual to take control of his/her Jewish journey through modernity.

88. *Ibid.*

89. In the words of the principles of Conservative Judaism, "This assures us a clear sense of identity together with a vibrant, healthy pluralism (i.e. individualism)." [*Emet Ve-Emunah*, p. 25]

90. Lucas, "Tattooing and Body Piercing," p.117

Reform Movement:

At the end of the 20th century, the Reform Movement faced a very different tattoo than the one addressed by the authorities of the classic rabbinic period. First, it was acknowledged that more and more Reform “youngsters...allow themselves to be tattooed” for reasons of adornment and self-expression.⁹¹ Second, adult adherents of the Reform Movement were availing themselves to another contemporary application of the tattoo: permanent cosmetics. As the earliest Reform responsum on the topic of tattooing states, “The procedure of inserting an inert pigment into the superficial dermis at the base of the eyelash...has been requested by many individuals.”⁹²

Inevitably, in a community which prizes personal autonomy, the choice to partake in these nuances of tattooing would be accepted.⁹³ Therefore, in order to maintain the prohibition, while appealing to one’s sense of personal autonomy, the responsa on the Movement will not and cannot simply dictate normative practice for all Reform Jews. Instead, the Reform responsa will need to persuade each reader to reframe the question of tattooing in order to preserve the legitimacy of the prohibition. Rather than being a question of personal style or convenience versus *halachah*. A Reform adherent is invited to ask: “How does the personal choice of tattooing affect core Jewish values?”

Reframing the question on tattooing, in terms of Jewish values, is done in one of two ways in the Reform responsa. Like the Orthodox and Conservative movements, the first

91. Solomon B. Freehof. “Tattooing and Burial.” *Today’s Reform Responsa*. (Cincinnati: HUC Press, 1990) p.119

92. Walter Jacob. “Inert Pigment as Permanent Cosmetic.” *Contemporary American Reform Responsa*, no. 15, January 1985. (New York: CCAR Press, 1987)

93. The responsum, “Tattooing, Body Piercing, and Jewish Tradition.” CCAR Responsa: 5759.4 states, “we recognize the importance of personal adornment.” Such a view would inevitably lead to a permissive stance regarding the personal choice to tattoo for reasons of adornment and self-expression.

way is through a direct engagement with the classic rabbinic definition of *ketovet ka'aka*.⁹⁴ Reiterating the traditional standard of the prohibition, Reform *posek*, Rabbi Solomon Freehof states, “There is, of course, no doubt, that tattooing...is regarded in Jewish law as forbidden.”⁹⁵ The undeniable truth of this statement is confirmed in the classic rabbinic discussion presented in the Reform responsa. Beginning with the Biblical prohibition of Leviticus, a digest version of the *halachah* ends with the statement from the *Shulchan Aruch*: “*Ketovet ka'aka* [means] that one [is prohibited from] lacerating the flesh and filling the place of the laceration with blue dye, or [black] ink, or with whatever colors leaves a mark.”⁹⁶ Yet, by analyzing the lengthy definition on tattooing, Reform *poskim* are able to identify one acceptance made by the classic rabbinic authorities that was prophetic: it is permitted to make a mark for the purposes of healing.⁹⁷

Identifying the medical exception in the classic rabbinic discourse practically renders the challenge modern medical tattoos pose to the traditional prohibition of *ketovet ka'aka* inert. In a question presented to Reform *posek*, Rabbi Walter Jacob, Rabbi Agler writes:

“The procedure [of inserting an inert pigment into the superficial dermis] has been suggested to accompany a variety of surgical procedures used to correct defects or following serious accidents which lead to the loss of eye

94. Commenting on *halachah* and Reform Judaism, Dr. Mark Washofsky, the current chair of the CCAR Responsa Committee writes: “Reform responsa do not partake of anything resembling an authoritative halachic process: Our answers are in no way binding upon those who ask the questions, let alone upon anyone else. Our *t’shuvot* are advisory opinions...[and] their ‘authority’ ...lies in the power to persuade.” The persuasive argument is articulated both through “the sources of Jewish tradition,” which include the Talmud, Maimonides, etc., as well as “those sources included in the tradition of Reform Jewish thought as expressed in our previous responsa, resolutions, and publications... This reflects our understanding of Reform as a continuation of Jewish tradition and not, as is sometimes asserted, a radical departure from it.” [Michael A. Meyer & W. Gunther Plaut. *The Reform Jewish Reader: North American Documents*. (New York: UAHC Press, 2001) pp. 121-122.]

95. Solomon B. Freehof. “Tattooing and Burial.” *Today’s Reform Responsa*. (Cincinnati: HUC Press, 1990) p.120

96. *Shulchan Aruch*, Yoreh De’ah 180:1

97. BT *Makkot* 21a; *Sefer HaTurim*, Yoreh De’ah 180, *Shulchan Aruch*, Yoreh De’ah 180:3

lashes... As Judaism is opposed to tattooing, is it permissible to use this procedure?”⁹⁸

In addressing the serious implications of this and similar questions, the Reform Responsa Committee (i.e. the Committee) under the leadership of Rabbi Mark Washofsky recognized that the classic rabbinic discussion had long permitted the placing of hot ashes upon a wound, even though the ashes might leave a permanent tattoo-like impression upon the skin.⁹⁹ As it is recorded in the *Shulchan Aruch*, “It is permitted to place ashes upon his wound to heal it.”¹⁰⁰ According to Rabbi Washofsky, these marks are permitted since the prohibition was intended to be “a preventative measure designed to separate Israel from pagan rituals.”¹⁰¹ As healing is not a pagan ritual, but a positive value of Judaism, the incision indicated in the question of Rabbi Agler, and “incisions for other legitimate [medical] purposes, are exempt from its (i.e. the prohibition’s) terms.”¹⁰² However, Rabbi Jacob cautions, “it would violate the spirit of the tradition to use this [allowance] in a broad, general manner.”¹⁰³

Rabbi Jacob’s cautionary advice indicates that while the Reform *poskim* followed the process of their more traditional counterparts through the classic rabbinic texts, they do

98. Jacob, “Inert Pigment as Permanent Cosmetic.”

99. The CCAR Responsa Committee provides answers to questions about Reform Judaism and Jewish living. Unlike resolutions, which are adopted by vote at a CCAR convention by its members, responsa are produced by committee. The responsa produced by the Committee provide guidance, not governance, to the Reform Jewish community as to the opinion “which best expresses the underlying purposes and values of Jewish religious observance.” As a body of literature, the responsa published by the Reform movement reveal a broad consensus as to mainstream Reform Jewish thinking on important issues facing contemporary Judaism. Individual rabbis and communities retain responsibility, however, to make their own determinations as to the stance they will take on individual issues. [www.ccarnet.org/resp/ and Michael A. Meyer & W. Gunther Plaut. *The Reform Jewish Reader: North American Documents*. (New York: UAHC Press, 2001) pp. 121-122.] “Tattooing, Body Piercing, and Jewish Tradition.” CCAR Responsa: 5759.4

100. *Shulchan Aruch*, Yoreh De’ah 180:3

101. “Tattooing, Body Piercing, and Jewish Tradition.” CCAR Responsa: 5759.4

102. *Ibid.*

103. Jacob, “Inert Pigment as Permanent Cosmetic.”

not stretch the narrow scope of the prohibition as defined by those authorities to fit all contemporary circumstance of tattooing, such as self-expression or personal adornment.¹⁰⁴ To do so, in the words of the Committee, would be “to use our religious language...[as] a smokescreen behind which one generation or group within a society seeks to impose its own standards of beauty, decorum, and taste upon those who do not share them.”¹⁰⁵ In other words, the rabbinic authorities of the Reform Movement recognized the applicable limits of the classic rabbinic texts. To present a more legitimate response to modern tattoos outside those of a medical nature, Reform *poskim* rely heavily upon rabbinic principles. By expressing the question on tattooing through the traditional principles of *chavalah*, *b’tzelem elohim*, and *kedushah*, Reform Jews are not commanded to uphold the prohibition on tattooing. Rather, they are encouraged to explore the prohibition’s potential ramifications on Jewish values, and it is hoped, be convinced to fulfill the spirit of the prohibition of separating Israel as holy unique on their own terms.¹⁰⁶

The first value presented to the reader of the Reform responsa is through the principle of *chavalah*. From a purely practical standpoint, the principle of *chavalah* asks contemporary Jews: What value is there in voluntarily placing the body in harm’s way by

104. Representing the CCAR Responsa Committee, Dr Washofsky writes, “As an expression of our identification with the Jewish heritage, we seek to uphold traditional halachic approaches whenever fitting. But we reserve for ourselves the right to judge the degree of ‘fit.’” [Meyer and Plaut. *The Reform Jewish Reader*, p. 121-122.]

105. “Tattooing, Body Piercing, and Jewish Tradition.” CCAR Responsa: 5759.4 In the contexts of the responsum, this quote is attempting to justify the line of distinction drawn between some forms of body modification, such as ear-piercing which is permitted by Jewish law, and other modes of body modification that are more extreme, such as body-piercing and tattooing which are not permitted by Jewish law. However, in its essence this statement has everything to do with the application of the traditional language. The CCAR Responsa Committee, in this statement, is cognizant of the difficulty in applying the traditional language so that it is done so appropriately, responsibly, and in the most un-biased way possible.

106. Dr. Washofsky comments in personal correspondence, saying, “To the extent the reader takes these values seriously, s/he is more likely to find tattooing troubling and problematic on Jewish grounds.”

choosing to be tattooed? The intent of the principle was to safeguard an individual from any unnecessary harm. Invasive procedures such as tattooing, which subject the human body to needless incisions, would be prohibited by the rabbinic principle of *chavalah*. Unless, appends the Committee, there was “sufficient reason” to do so.¹⁰⁷

Sufficient reason to overturn the principle of *chavalah* may be based upon medical necessity. Yet, it is difficult to define the standards by which one procedure is determined necessary, while another is not. As Rabbi Bonnie Steinberg writes:

“A [Reform] congregant plans a reconstructive breast surgery following a radical mastectomy. Her surgeon will tattoo an areola on the reconstructive breast. She wishes to know whether this would violate the traditional prohibition against tattooing,” or does this qualify as a medical necessity worthy to overturn the prohibition?¹⁰⁸

From the case in question, the modern *poskim* of the Reform Movement established the standards of medical necessity. “Invasive procedures...are justifiable only when they are part of a regimen of medicine, when they contribute to what we can plausibly regard as ‘healing.’”¹⁰⁹ Healing is not narrowly defined by the Movement’s *poskim* as physical rehabilitation. As the case above demonstrates, healing can be broadly defined to include medical procedures “vital to an individual’s psychological and emotional well being.”¹¹⁰ The tattooed areola on a reconstructive breast clearly serves no physical health benefit. But, the psychological benefits cannot be ignored.

107. “Tattooing, Body Piercing, and Jewish Tradition.” CCAR Responsa: 5759.4

108. *Ibid.*

109. *Ibid.*

110. Gunther Plaut and Mark Washofsky. *Teshuvot for the Nineties: Reform Judaism’s Answers for Today’s Dilemmas*, no. 5752.7. (New York: CCAR Press, 1999). p. 132

Invalidating the principle of *chavalah* on some occasions may erroneously leads one to think the principle can be overturned on all occasions of surgical procedures that allow one to “feel good.” Warning against this interpretation, the Committee writes, “surgery [which tattooing is considered to be] designed merely to enhance a person’s appearance runs counter to the message of Judaism.”¹¹¹ Judaism, writes Rabbi Washofsky, “admonishes us to look below the surface, to concentrate upon the development of deeper and more lasting measurements of self-worth and satisfaction.”¹¹² Thus, the principle of *chavalah*, which reinforces the prohibition against modern tattoos of adornment and self-expression, also steers the individual away from the task of enhancing the exterior to focus on the enhancement of the interior.

How the personal decision to tattoo affects the deeper and more personal measures of self-worth is raised specifically by the second rabbinic principle included in the Reform responsa. Similar to the Orthodox and Conservative Movements, the Reform Movement brings the concept of *b’tzelem elohim* to bear on the discussion of tattooing. Although the dictum is not mentioned by name, its contextual interpretation is indeed articulated in the responsa to support the prohibition. According to the Committee, “we do not own our bodies; rather, God has entrusted them to us for safekeeping, and we are responsible to

111. *Ibid.*

112. *Ibid.* In an interesting contrast, this positions seems to contradict the permission granted to Orthodox women by Rabbi Yaakov Breisch, who allowed rhinoplasty for the sake of being more marriageable to a potential spouse (see footnote 56). Being attractive to a mate was a credible benefit for Rabbi Breisch to overturn the principle of *chavalah*. However, it is not a substantial enough benefit for Reform poskim as this statement is, in fact, made in response to a similar question posed to the Committee: “A woman is planning breast enlargement surgery in order, she says, to please her husband. She now wonders whether this is sufficient justification for the procedure, and she has asked my counsel.” Instead of invasive surgery, the players in this real life drama would be encouraged by the Committee to invest in the more enduring values of an individual’s self worth that reside below physical appearance, referring to one’s character.

God for what we do to them during our lifetime.”¹¹³ But, Reform *poskim* interpret the principle differently than the Orthodox *poskim*. In the Reform responsa, the principle of *b'tzelem elohim* is not illustrated in metaphoric terms that allude to the harm done towards God or God's property: painting a borrowed car or of a superintendent who ransacks the building he is hired to maintain.¹¹⁴ Instead, the act of voluntarily marking the canvas of the human body is interpreted as a pretentious act towards God, irrevocably staining not God but one's own character in the human-divine dynamic. Comparing humans as mere apprentices to the master artist of God, the Committee cites a Talmudic passage which states: “it is as if to say to the Artisan: ‘how ugly is this vessel that You have made.’”¹¹⁵ Therefore, I must add to it.

To distinguish between permissible artistic additions such as ear-piercing and non-permissible artistic additions such as tattoos (e.g.) – to make value judgments, Reform *poskim* (like their Conservative colleagues) must maintain a tension between personal autonomy as students of Torah and the communal values the Torah contains. As it is stated by the Committee: “Judaism, like religion in general, is all about making value judgments; our task as Jews and as students of Torah is thus to arrive at those value judgments that reflect our most coherent understanding of Judaism's message.”¹¹⁶ When the Torah values are presented in terms of rules of law, as in the halachic codes, it can be argued that the individual's task to distinguish between permissible and non-permissible is made easier as the message is clear. Do this. Don't do that. However, when the values of Judaism are presented as general principles, such as *chavalah* and *b'tzelem elohim*, the

113. “Tattooing, Body Piercing, and Jewish Tradition.” CCAR Responsa: 5759.4

114. *Ibid.*

115. BT, *Taanit* 20b

116. “Tattooing, Body Piercing, and Jewish Tradition.” CCAR Responsa: 5759.4

task to decipher what is then permissible in modernity and what is not is made more arduous. For in these latter instances, personal choice becomes a factor in clarifying and applying the message. And, with every choice, whether made in or out of the public's eye, comes a wide range of public scrutiny. Here is where the principle of *kedushah* comes into play.

Recognizing that the tattoo is one such choice which speaks to the bearer of the mark as well as the community who views it, the final principle employed by the Reform *poskim*, *kedushah* addresses the multi-vocal nature of the tattoo. The principle's origins are found in the Book of Leviticus. It is written there: "You shall be holy (*k'doshim*), for I the Lord your God am holy (*kadosh*)."¹¹⁷ This Biblical principle, by the Committee's definition, encourages Jews to consider how "every action, the private as well as the public, contributes toward the sanctification of the world and of our own lives."¹¹⁸ More expansive than the principles of *chavalah* and *b'tzelem elohim*, the principle of *kedushah* helps the individual reframe the question of tattooing in terms of his/her membership in the Jewish community, the congregation of Israel.¹¹⁹ As the Committee rhetorically questioned:

"What sort of statement [do] we make about ourselves and our bodies when we inject pigment into our skin...? Let us ask ourselves whether this

117. Leviticus 19:2

118. "Tattooing, Body Piercing, and Jewish Tradition." CCAR Responsa: 5769.4

119. To recap, the principle of *chavalah* asked Reform Jews to consider the affect tattooing had on their physical and emotional well-being and the principle of *b'tzelem elohim* asked Reform Jews to consider the affect tattooing had on their private relationship with God.

is truly the way that we Jews, commanded to pursue and to practice holiness, should aspire to ‘beautify’ and ‘adorn’ ourselves.”¹²⁰

Israel’s *kedushah* – its holy uniqueness – is either affirmed or denied each time a Jew makes a decision. Whether or not the choice is made to tattoo, if, in the process of making the decision, a Jew reflects with the utmost seriousness upon the values of Judaism: *chavalah*, *b’tzelem elohim*, and *kedushah*, then Israel’s distinctiveness is confirmed. In the words of the Committee, “When we think about them in this *Jewish* manner, we begin to realize that surely we can aspire to something better.”¹²¹

Conclusion:

As with all Americans, Jews at the end of the 20th century began to look towards the new century with a renewed sense of self and community. Yet, what happens when the sense of self is at odds with the community? American Jews, infatuated with the growing trend of modern tattooing, began indelibly marking the human canvas for the primary purpose of self-expression and adornment. These modern tattoos slowly infiltrated the ranks of every movement: Reform, Conservative, and Orthodox, posing a credible challenge to the classic prohibition on tattooing and the communal values it was intended to safeguard.

In the face of this threat to Jewish values, every movement of American Judaism mobilized to uphold the prohibition on tattooing. However, each movement went about this task in its own way. As it was demonstrated, some Orthodox *poskim* would not even acknowledge that a cultural change had occurred in modern tattooing which affected the prohibition. It was left, then, to other Orthodox *poskim* to address the implications of

120. “Tattooing, Body Piercing, and Jewish Tradition.” CCAR Responsa: 5769.4

121. *Ibid.*

tattooing, with which their adherents engaged: tattoos of adornment, medical necessity, and the stain of the Holocaust left on the arms of the survivors. To do so meant engaging almost exclusively in the rules of the law and, to a far lesser extent, relying upon traditional principles such as *b'tzelem elohim*. By these two methods, some Orthodox *poskim* ensured that despite the nuances modern tattoos posed to the classic rabbinic definition of *ketovet ka'aka*, the prohibition against tattooing would continue to safeguard Jewish values in modernity.

The Conservative Movement, likewise, moved to uphold the prohibition. Using both the rules of law articulated in the classic definition of *ketovet ka'aka* and the nuanced implications of rabbinic principles of law, such as *b'tzelem elohim* and *tzinut*, the Committee on Jewish Law and Standards was able to reinforce the modern applicability of the traditional prohibition. This method, however, served a dual purpose. Like all modern progressive movements, Conservative Judaism exists in a tension between the rights of the individual and his/her responsibility to communal rites and responsibilities. As alluded to in the responsum, personal autonomy had gained serious momentum in one's Jewish path, outrunning at times communal values. To limit personal autonomy while strengthening communal values, the responsum was structured in educational terms, balancing the classic *halachah* with the nuanced implications of rabbinic principles. Furthermore, by presenting this balanced educational approach in one all-encompassing responsum the Conservative Movement ensured that the prohibition continued to speak to all Conservative Jews regardless of level of religious observance.

The Reform Movement mobilized their efforts to maintain the modern applicability of the prohibition very differently than their Orthodox and Conservative counterparts. Only

from the classic rabbinic precedent of allowing curative marks was the Movement able to articulate a position regarding modern tattooing. Rather than using the letter of the law, the Reform Responsa Committee upheld the spirit of the prohibition – to separate Israel as holy unique – primarily through the use of three rabbinic principles: *chavalah*, *b'tzelem elohim*, and *kedushah*. Inviting Reform adherents to redefine the argument on tattooing in terms of these principles and the questions they raise regarding the values of Judaism allowed the *poskim* to affirm the highly prized concept in the Movement of personal choice, while effectively amplifying the message of the classic prohibition so that it could be easily heard and applied to contemporary circumstances on the initiative of the individual Reform Jew.

Even as the modern applicability of the classic rabbinic prohibition is upheld in all three major movements of American Judaism, adherents of these movements continue to voluntarily submit themselves to be tattooed. It may appear as if the appeals of their religious leaders failed. But, one should not assume that the words of the modern *poskim*, who transmitted the tradition into the modern period, fell on deaf ears. As contemporary Jews of all movements attempt to find their way to express the sense of self within their community, the voice of Judaism often times is heard, but not as a veto. Rather, when contemporary Jews contemplate the decision to be tattooed their sense of Judaism often gets a vote. At times, the vote sways them away from the decision to be tattooed. At other times, as the following chapter will show, the vote of Judaism actually influences the decision to be tattooed and the very nature of the tattoo itself.